

Rules Framed under the Madras Elementary Education Act, 1920

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Madras Presidency - Act

Rules Framed under the Madras Elementary Education Act, 1920

MADRAS PRESIDENCY

India

Rules Framed under the Madras Elementary Education Act, 1920

Rule RULES-FRAMED-UNDER-THE-MADRAS-ELEMENTARY-EDUCATION-ACT-1920 of 1920

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Rules Framed under the Madras Elementary Education Act, 1920

Section 3(1) - Attendance at School

1.

The full school-day shall, as a rule, consist of only five hours of instruction in the prescribed subjects, exclusive of the recess, if any, in the middle of any meeting and of the midday interval of not less than one hour; two meetings of five hours in the aggregate on the same day or of two hours and half each on different days may be counted as one school day. In respect of any school or standard or class, the District Educational Officer may, for special reasons, direct that any course of less than five hours shall be treated as a full school day. In the case of the three lowest standards or classes, instruction should not be given for more than two consecutive hours without a reasonable interval.

In the case of schools where the "shift system" has been adopted with the approval or at the direction of the Director of Public Instruction, three and a half hours in one session either in the forenoon or afternoon shall constitute a full school

day. The session shall have five periods of forty minutes each, with an interval of ten minutes at the end of the second or the third period. In such schools, the school shall work in two batches of nearly equal strength for six days in a week, one batch working in the morning session and the other in the afternoon session. Ordinarily each batch will work in three morning sessions and three afternoon sessions in a week alternately.

In the case of schools classified as "night schools", the school day shall be at least two and a half hours.

Minimum attendance for the year shall ordinarily be calculated.

(a)

In respect of two hundred school days for schools attached to boarding houses and orphanages; and

(b)

In respect of two hundred and twenty school days for other schools.

The District Educational Officer should be notified of such times as the school is closed during the year:

Provided that where a school has to be closed owing to the prevalence of an epidemic in its vicinity or for any other similar cause, the deficiency in the minimum attendance prescribed by this rule may be condoned by the District Educational Officer up to a maximum period of three months and by the Divisional Inspector of Schools where the period to be condoned exceeds three months, if at the time of the closure of the school, the management thereof had informed that the Deputy Inspector of Schools of the reasons for such closure:

Provided further that the deficiency in the minimum attendance in a case which is not covered by the preceding proviso may be condoned (i) in the case of schools managed by Panchayats by the Inspector of Municipal Councils and Local Boards and (ii) in the case of other schools, by the District Educational Officer where the period does not exceed one month, by the Divisional Inspector of School where the period exceeds one month but not two months and by the Director where the period exceeds two months.

In the case of adult literacy schools, the school day shall be not less than an hour and a half during any part of the morning or evening and the minimum attendance for the year shall ordinarily be calculated in respect of two hundred such school days.

Section 3(V) - Elementary Education

(a)

"Elementary Education" means education up to and including Standard V of an Elementary School or up to and including Class V of a Secondary School and for purposes other than compulsion, also includes education in Standards VI, VII and VIII of an elementary school.

(b)

"Elementary Education" shall mean the imparting of instruction in the following subjects:-

Lower Elementary or Primary Stage Standards I to V

Compulsory Subjects

(1)

Language

(2)

Elementary Mathematics

(3)

Nature Study and Gardening

(4)

Physical Training

(5)

History and Geography

(6)

Civics and Hygiene (including elementary homecraft for girls)

(7)

Music

(8)

Handicrafts

Optional Subjects

(1)

Drawing

(2)

First Aid

(3)

A second language in Muslim schools in bilingual areas

(4)

Religious or moral instruction

Higher Elementary Stage Standards Vi to VIII

Compulsory subjects

(1)

Language

(2)

Elementary Mathematics

(3)

Elementary Science (including Home Science for girls)

(4)

Social Studies

(5)

Physical training

(6)

Pre-vocational work (including practical gardening for rural higher elementary schools)

Optional Subjects

(i)

English

(ii)

Music

(iii)

A second language in Muslim schools in bilingual areas

(iv)

Drawing

(v)

Religious or moral instruction

Section 3(Vii) - Elementary School Place

"Elementary School Place" means suitable accommodation subject to a minimum of 9= square feet of floor space per pupil, 15 square feet in the case of Basic Schools and equipment consisting of a supply of suitable pictures and other simple appliances.

Section 3(Viii) School-Age

School-age means the period of life of a pupil from the date on which he or she attains the age of six until he or she has received elementary education up to and including Standard V of an elementary school or up to including class V of a Secondary School or until he or she attains the age of twelve, whichever is earlier:

Provided that the Director of Public Instruction may, with the approval of the Government of Tamil Nadu, prescribe for boys or girls of any particular community limits of age different from those prescribed in this rule:

Provided also that for a period of six years commencing on 1st August 1945 in respect of any area under the jurisdiction of a District Board where compulsory elementary education is introduced on or after that date the upper age-limit shall be fourteen in the case of a boy and twelve in the case of a girl:

Provided further that in no case shall a boy or girl be compelled to attend a school for more than six years in the aggregate during the school-age as defined above.

Explanation. - For the purposes of this rule, a pupil attaining the age of six in the middle of a school year shall be deemed to have attained that age only on the date on which admission can thereafter be normally made under rule 22(a) of the rules relating to the grant of recognition and aid to elementary schools and a pupil under going instruction attaining the upper age-limit in the course of the school-year shall be deemed to be within the school-age until the end of

that school-year.

Section 36(1) - Assessment and Realization of Education Tax

The provisions of sub-section (1) of section 98-A of the Chennai City Municipal (Corporation) Act, 1919, sub-section (3) of section 78, of the Chennai District Municipalities Act, 1919 of sub-section (3) of section 78 of the Tamil Nadu Local Boards Act, 1920 as the case may be, shall not apply to any case where the education tax is levied or the rate of levy of such tax is altered on a direction issued by the State Government.

Section 36(2) - Percentage of Proceeds (other than land cess) of Tax to be Credited to Panchayats

The cost of collection of any tax levied in a panchayat area under any head of taxation other than land cess shall for purposes of credit to the village fund of the panchayat be fixed at 5 per cent, of the total proceeds of such tax which are actually realized.

Section 38(1) - Form of Budget of Elementary Education Fund

Vide Appendix 1 to these rules.

Section 38(2) - Re-Appropriation of Funds

1. No local authority shall incur expenditure in excess of the provisions made under any head in the budget approved by Government under sub-section (2) of section 38 except to the extent allowed by rules 2 to 5.

2.

Heads numbered 1 to 6 under expenditure "Ordinary" and those numbered 1 to 3 under expenditure "Capital" in the form of budget prescribed under sub-section (1) of section 38 shall be called main heads. Subject to the condition that the orders of the Government on any specific matter while approving the budget are not contravened, re-appropriation from one main head to another may be effected by a local body without the sanction of any outside authority.

3.

Re-appropriation from one sub-head to another under the same main head may be made by the local authority concerned.

4.

Transfer of provisions from expenditure "Ordinary" to expenditure "Capital" or vice versa shall not be made by any local authority without the sanction of Government.

5.

Expenditure shall not be incurred in excess of the total provisions in the approved budget without the specific sanction of the Government.

Section 44 - Compulsory Elementary Education

1. In any area affected by a notification introducing compulsion under clauses (d), (e) or (f) of section 44, the attendance of a child in an elementary school for thirty working days shall place the guardian of the child under an obligation to cause such child to attend an elementary or any other recognized school so long as he is of school-age.

2. In the case of child who has migrated from one compulsory area to another or who has been readmitted into the same or another school in the same area after an interval, the previous attendance shall be taken into account for the purpose of rule 1.

3. No pupil shall be newly admitted except on an application made in the form in Appendix 2 which must be signed by his guardian. All such applications shall be filed separately in the records of the school.

4. When a pupil seeks admission for the first time into a school not having studied in any school previously, he shall be placed in standard or class which the headmaster considers suitable. When a pupil leaves one school and joins another, the headmaster of the latter school shall ordinarily place him in the standard or class to which the transfer certificate, record sheet declares him fit. In case where the pupil has been placed in a class or standard higher or lower than that for which his transfer certificate or record sheet declares him fit, the headmaster shall preserve a record of any test he may have made of the pupil's attainment and immediately report such case to the inspecting officer.

5. A school record sheet shall be maintained for each pupil in the schools by the headmaster in the form in Appendix 3. The reference numbers of defaults, if any, shall be entered in the record sheet by the headmaster at the end of the each quarter. Such record sheet shall be issued, to the pupil on leaving the school and shall be produced by the pupil when joining another school. The headmaster shall sign in the record sheet before it is issued. When the record sheet is so issued, the headmaster of the school which the pupil has left shall keep a copy of the entries there in a register maintained for the purpose. He shall sign at the end of each calendar year in the register.

6.

It shall be the duty of the headmaster of every school to prepare and submit to the committee constituted under rule 7 every month a list of defaulters as explained in the rules under section 49. This list shall be prepared within the first week of every month and shall contain particulars of all children who became defaulters in the preceding month.

7.

The Deputy Inspector shall constitute a committee or committees for every elementary area. Such committees shall consist of the headmaster of all recognized elementary schools, the supervisors of elementary schools of municipal councils and where there are more than one supervisor all such supervisors and such other persons as may be nominated by the Divisional Inspector of Schools concerned in consultation with the Commissioner, Corporation of Chennai, the President, District Board or the Chairman, Municipal Council as the case may be:

Provided that in the case of the attendance committees constituted separately for girls' schools, the nomination of members may be made by the Director of Public Instruction.

If at any time the nominating authority considers, for reasons to be recorded by him in writing, that the continuance of any person as a member of the committee will be prejudicial to the interest of compulsory elementary education in the area concerned, he may terminate the membership of such person and appoint another person in the vacancy:

Provided that in cases where the nominating authority is not the Director of Public Instruction, the approval of the Director shall be obtained for such termination.

7.

-A. (i) Any member of the committee nominated to it may resign his membership at any time by giving notice thereof in writing to the authority who nominated him and such members shall be deemed to have vacated his seat as soon as the said authority has accepted the resignation.

(ii)

Any member of the committee shall cease to be a member if he is absent for three consecutive meetings of the committee. Such member, may, however, be restored to office if the explanation offered by him for his non-attendance at meetings is considered satisfactory by the President of the Committee.

8.

The Deputy Inspector shall be the President "ex-officio" of the Committee constituted by him under rule 7.

In any area under the jurisdiction of a District Board where compulsory education is introduced, on or after the 1st August 1945, the Senior Deputy Inspector or Junior Deputy Inspector who has jurisdiction over that area shall be the President of the Committee constituted under rule 7.

In any area under the jurisdiction of an Attendance Officer, he shall be the President of the Committee instead of the Senior or Junior Deputy Inspector of Schools.

In areas where there is a supervisor, he shall be the ex-officio Secretary of the Committee. In the case of Municipal Councils which employ more than one supervisor the senior-most among the supervisors shall be the Secretary of the Committee.

In non-municipal areas, the village munsif shall be an ex-officio member of the Committee.

The President shall convene meetings of the Committee for the transaction of business on such dates and at such times as he may arrange. The Committee shall meet once a month but may meet often if any special urgent business has to be transacted.

Every meeting of the Committee shall be presided over by the Deputy Inspector and in his absence by a member chosen by the meeting to preside for the occasion.

9.

Attendance at these meetings shall be compulsory in the case of headmasters of schools and should the headmaster not be in a position to attend, he shall depute an Assistant to represent him with the permission of the Deputy Inspector. No business shall be transacted at a meeting unless there be present at least one-third of the number of members then on the committee.

10.

(i) It shall be the duty of every committee constituted under rule 7(i) in areas in which compulsion is introduced under clauses (a), (b) or (c) of section 44 to prepare lists of pupils of school-age who are not in school.

(ii)

to scrutinize and revise if necessary the defaulters' list prepared by the headmaster;

(iii)

to organize visits to guardians or do such propaganda work as may be considered desirable to attract more pupils into schools or to advise guardians;

(iv)

to study order of Government or of the Director of Public Instruction or the President of the District Board or the Chairman of the Municipal Councils on questions relating to compulsion or to interpretation of the rules and to offer any comments on them to the District Educational Officer for consideration and communication to the Director, President or Chairman;

(v)

to investigate all cases in which children who should be at school have been absent; and

(vi)

to perform such other duties as may be assigned to them by the Director of Public Instruction in regard to the enforcement of compulsion in the area.

11.

The final defaulters' list shall be prepared by each headmaster in the form in Appendix 4 and submitted to the President of the Committee constituted under rule 7, an office copy being maintained in the School in register with numbered pages.

12.

Failure of a headmaster to comply with the provisions of rule 9 or any misrepresentation or negligence on his part in the preparation of defaulters' list or in reporting their names or in the discharge of any of the duties imposed on him under these rules shall render the schools liable to loss of recognition or to reduction or total withdrawal of grant. If any teacher is found guilty of any neglect of duty in this connection the teachers' certificate may be suspended or cancelled by the Director.

13.

If any difficulty arises in the interpretation or enforcement of these rules, the matter shall be reported to the Director of Public Instruction whose decision thereon shall be final.

Section 49 - Responsibility of Guardians

1. If a child is absent from school for fifteen days in any one quarter his guardian shall be deemed to have failed to discharge the obligation created by section 49.

2. In any area where compulsory education is introduced under clauses (a), (b) and (c) of section 44, the guardian of any child of school-age shall be deemed to have placed himself under the obligation to continue his child in school required by rule 1 under section 44.

3. For purpose of rule 1 the quarter shall commence respectively on the 1st day of January, the 1st day of April, the 1st day of July and 1st day of October.

4. If any difficulty arises in the interpretation or enforcement of these rules the matter shall be reported to the Director of Public Instruction whose decisions thereon shall be final.

Section 50(III) - Prescribed Officers For Granting Exemption From Attendance

In areas in respect of which notification under section 46 of the T. N. Elementary Education Act, 1920, has been issued, the District Educational Officer of the District in which a child is resident shall be the Prescribed Officer for purposes of section 50(iii) of the Act.

Section 50(V) - Exemption From Attendance

A child may be exempted from attendance on any other ground accepted as satisfactory by the Director of Public Instruction.

Section 51(1) - Enforcement of Compulsion

The President of the Committee constituted under rule 7 of the rules framed under section 44 shall serve or cause to be served a notice on the guardian of the defaulting pupil or pupils calling on the guardian to appear before him to explain the default at a specified place in the compulsory area at a specified time and on a specified date.

2. The notice referred to in sub-rule (1) shall be issued after receipt of the defaulters' list from the headmaster. At least ten days shall be allowed between the date of service of the notice and the date fixed under sub-rule (1).

3. If the guardian fails to appear on the date fixed to explain the default the President of the committee shall report the matter to the District Educational Officer who shall impose a penalty in accordance with the provisions of sub-section (1) of section 51.

4. If the guardian applies for time for explaining the default, the President may if the reason given are satisfactory grant time not exceeding a week and may appoint another date for his appearance. If the guardian does not appear even on that date, his case shall be reported to the District Educational Officer who shall impose a penalty in accordance with sub-section (1) of section 51.

5. If the President considers that the reasons adduced are not satisfactory he may refuse to grant the time asked for under sub-rule (4). He shall then report the case to the District Educational Officer, who shall impose a penalty in accordance with the provisions of sub-section (1) of section 51.

6. If the guardian appears at the place and date specified under sub-rule (1) the President shall conduct an oral enquiry and record in writing the explanation of the guardian for the absence of the child or children from the school in the presence of at least one nominated member of the committee. He shall then forward the records of the case to the District Educational Officer.

7. (i) The District Educational Officer shall, on receipt of the records referred to in sub-rule (6), investigate whether the absence of the child is covered by anyone of the grounds specified in section 50. If not, he shall impose a penalty in accordance with the provisions of sub-section (1) of section 51.

(ii)

Every order imposing a penalty under sub-rule (1) shall be communicated to the person on whom it is imposed to the headmaster of the school, to the President of the Committee, to the President, District Board or the Commissioner, Corporation of Chennai or the Executive Authority of the Municipal Council or the Executive Authority of the Panchayat, as the case may be, and to the village munsif in areas within the jurisdiction of District Boards or Class II Panchayats.

(iii)

In the City of Chennai and in Municipalities, the Commissioner and in Class I Panchayats, the executive authorities shall take steps to collect the penalties imposed under sub-rule (i). In areas within the jurisdiction of District Boards and Class II Panchayats the penalties shall be collected by the village munsif concerned.

(iv)

For the first breach of the obligation created by section 49 no penalty shall be imposed and the guardian shall be let off with a warning, but for the second and every subsequent breach, a penalty shall be levied on the following scale.

Minimum Rs. P.

Maximum Rs. P.

Second breach

0.75

0.95

Third breach

1.50

1.90

Fourth breach

2.25

2.80

Fifth breach

3.00

3.75

Sixth and subsequent breach

6.00

7.50

(v)

No penalty shall be levied under sub-rule (i) on any guardian after the lapse of one full quarter from the date of receipt of the report of default by the President of the Committee.

(vi)

No penalty shall be imposed in respect of any default occurring in any quarter which has not been reported upon in the quarter succeeding the same.

(vii)

Every notice issued by the President of the Committee to a guardian and every order imposing any penalty on a

guardian shall be served on him by the village munsif in areas within the jurisdiction of District Boards and Class II Panphayats. A copy of the memorandum forwarding the notice or order to the village munsif shall be sent to the Thasildar concerned for information. In areas within the jurisdiction of Municipalities and Class I Panchayats the notice of order shall be sent to the Executive Authority of the Municipalities and Class I Panchayats who shall arrange for the service of the notice order on the guardian through a suitable employee under them. The service of the notice or order in the city of Chennai may be effected in the manner laid down in section 374 of the Chennai City Municipal Corporation Act, 1919. The Commissioner, Corporation of Chennai or the Executive Authority of Municipal Council or Class I Panchayat or the Village munsif, as the case may be, shall return the counterfoil of the notice to President of the Committee and the counterfoil of the order to the District Educational Officer, specifying the date on which the notice or order has been served with the signature of the guardian. In cases where the counterfoil cannot be returned with the signature of the guardian, a report as to the mode of service should be made to the President of the Committee or to District Educational Officer, as the case may be.

(viii)

If any difficulty arises in the interpretation or enforcement of these rules, the matter shall be reported to the Director of Public Instruction, whose decisions thereon shall be final.

Appendix I

Budget Estimate of the Elementary Education Fund

Summary

Opening Balance

Receipts

Expenditure

Closing Balance

(1)

(2)

(3)

(4)

(5)

Rs.

Rs.

Rs.

Rs.

I Ordinary

II Capital

Receipts

Actuals of

Revised estimate for Heads

Budget estimate for

Remarks

20 20

20 20

20 20

Rs.

Rs.

Rs.

Ordinary

1. Education Tax

2. Fines and penalties under Elementary Education Act

3. Investment realized

4. Income from investments etc.

5. School fees

6. Endowments

7. Contributions

8. Other receipts

9. Government grant

(i)

Under section 37(1), (2) and (3) of the Elementary Education Act,

(ii)

Under section 37 (4) of the Act, and

(iii)

For the introduction of compulsion 10. Contribution from the general account.

Total.....

Deduct:-Appropriation to Elementary Education Capital

Net Total.....

Capital

1. Government grants

2. Endowments and Contributions

3. Loans

4. Contribution from the general account of the local body-Ordinary

5. Appropriation from Education-Ordinary

6. Investments realized

Total.....

Expenditure

Ordinary

1. Staff-

Salaries and allowances MastersClerks and servants Contribution to Provident Fund Travelling Allowance Stipends of teachers sent for training

2. Contingencies and equipment-

ContingenciesHouse rent Other items Equipment-Furniture and apparatus Library books and maps Other items

3. Prizes and scholarships

4. Repairs to buildings

5. Interest on and repayment of debt

6. Investment made

Total, Ordinary charges.....

Capital

1. Land and buildings

2. Equipment-

Furniture and apparatus Library Books and maps Other items

3. Investments made

Total, Capital Charges.....

Note. - The budget should be accompanied by a statement containing particulars under the following heads:-

Number of schools having as the higher class

VIII Standard

VII Standard

VI Standard

V Standard

IV Standard

III Standard

II Standard

I Standard

1.

Number of schools on the date of submission of the budget

2.

Number of schools proposed to be opened in the ensuing year.

3.

Total number of teachers employed in all the schools under the management of the local body on the date of submission of the budget, the scales of pay in force and the number of teachers in each scale.

4.

Number of additional teachers proposed to be employed in (i) existing schools & (ii) schools to be newly opened during ensuing year and their scales of pay.

5.

If the pay of existing teachers is proposed to be revised, the total number of teachers, whose pay will be affected showing the present and proposed scales of pay and the extra provision made for the purpose.

6.

No. of adult literacy schools having:

(1) One year's course

(2) Two years' course

(3) Three years' course

Appendix 2

(See section 44 rule 3)

Application for Admission into a School

1.

Name of School

2.

Name of pupil

3.

Religion, caste and sex

4.

Date of birth

5.

Residence

6.

Name of parent with occupation and residence

7.

Name of guardian with occupation and residence

8.

Schools previously attended by the pupil

I certify that the information given above is correct, that the pupil has not attended any other school besides those mentioned above, and that no fees are due on his account to any school which he has attended.

2. I hold myself responsible for the regular attendance of the pupil and am liable for the penalty for his defaults.

Signature of parent or Guardian.

Appendix 3

(See section 44 rule 5)

Record Sheet

(To be kept in the school and issued to a pupil on leaving the school)

Name of the Pupil (in full)

Admission number

Date of Birth

Religion and caste

Name of parent (in full)

His/Her occupation and residence

Name of Guardian

His/Her occupation and residence whether the parent or guardian is responsible for the pupil's regular attendance as per the declaration in paragraph 2 of the application for admission.

First Quarter*

Second Quarter*

Third Quarter*

Name of school

Date of admission

Standard

W

P

Reference number of the default,

If any

Standard

W

P

Reference Number of the default,

if any

Standard

W

P

Reference Number of the default,

if any

Fourth Quarter*

Standard

W

P

Reference number of the default, if

any

Progress and conduct

Signature of the headmaster at the

end of each calendar year

Signature of headmaster before issue

of the record sheet when the pupil leaves the school

W = Working days

P = Days present

*[With reference to the calendar year, if during any quarter the pupil was promoted from one standard to another standard, W and P. and reference number of default, (if any) will be shown in two lines for the quarter, each line corresponding to one of the two standards studied in that quarter.]

Attained the age prescribed.....

Completed the fifth Standard course on.....

Signature of Pupil.....

Headmaster of the school in which the prescribed age was attained or standard V was completed.

(i)

The date of birth should be taken from the admission of application.

(ii)

No record should be opened if the pupil has been in another school in a compulsory area. The headmaster should, in such cases, request the [Deputy Inspector]

[Except when otherwise directed.]

to secure the record sheet from the school in which the pupil was previously reading.

(iii)

In areas where compulsory education has been introduced on or after the 1st August 1945 compulsion cannot be enforced in the case of a boy if he has completed 14 years of age and in the case of a girl if she has completed 12 years of age. Compulsion may however be enforced up to the age of 14 if the girl is reading in a special girls school functioning in those areas. In other areas, compulsion cannot be enforced in respect of children of either sex if they have completed 12 years of age.

(iv)

The Deputy Inspector or Supervisor should sign in the remarks column whenever he scrutinizes the record sheet. The headmaster should also sign in the remarks column in token of the corrections of the entries made in his school when the record sheet is transferred to the headmaster of another school.

Appendix 4

(See section 44 rule 11)

Defaulter's List of Pupils at School/not at School For the Month Ending

Name and Address of School

(1)

Serial Number

(2)

Admission number and Record Sheet number

(3)

Name of pupil

(4)

Standard

(5)

Name and address of parent or guardian

(6)

Date of Birth

(7)

Date of Admission

(8)

Whether attended for thirty working days.-Nature of default period of absence by days in each month of the quarter First

(9)

Second Third Total

(10)

Cause of absence if known whether verified and found true by the Headmaster or Attendance Officer.

(11)

Reference number of previous default

(12)

Nature of penalty imposed for the last of the default in the previous column.

(13)

Date of issue of notice by the President, Attendance Committee

(14)

Date of report to the District Educational Officer

(15)

Reference number of default.

Certified that no defaulter's name has been left out or struck off the rolls.

..... Signature of the Headmaster or Headmistress. Counter-signature of the President

Attendance Committee.

Related AI tags, queries and research notes

Translation